Case study · Domenico Perroni

AI GOVERNANCE · HR

Which of HR's AI systems are high-risk, and what do they owe?

Client: The same four-country employer, whose HR function uses twelve AI systems, from CV screening to a pay review recommender and an attrition model built in-house.

> **Which systems does the AI Act ban or class as high-risk, what does each owe and from when, and whom do we have to tell before we use them?**

1 of 12
systems to stop now: emotion recognition in interviews

7
high-risk systems, with duties from 2 December 2027

1
system built in-house that makes the employer a provider

8 · 5
systems to inform the German works council about · that need its agreement

WHAT I DID

- Read the AI Act and the Digital Omnibus (Regulation (EU) 2026/1744) in the Official Journal: the high-risk duties for HR moved to 2 December 2027; the bans and AI literacy did not.
- Classified each system from twenty answers: prohibited, high-risk, not high-risk under Article 6(3), transparency only or minimal, with the reason written next to it.
- Mapped thirteen obligations to the systems that trigger them, and the national rules on informing and consulting workers in Italy, Germany, Spain and Poland.
- Delivered a live Excel register, a report for the HR director and a worker information pack with a model notice per country.

WHAT IT FOUND

- A video interview pilot infers candidates' emotions: prohibited at work since February 2025, with fines up to 7% of turnover.
- National labour law binds before the AI Act does: Spain owes the works council the parameters of seven systems; Italy requires notices for two fully automated ones.

WITH REAL DATA

- The suppliers' instructions for use and their Article 6(4) assessments, on file.
- The Commission's guidelines on high-risk classification applied to the boundary cases.
- A labour lawyer in each country to confirm the notices before they go out.

How it is checked. 317 figures reconciled between the Excel formulas and Python, recalculated by LibreOffice on every change; a test changes an answer and checks both engines reclassify the system.

EU AI Act · Labour law IT/DE/ES/PL · AI governance · Excel modelling · Python

Read the report https://d0m3n1c0x.github.io/ai-act-hr-readiness-kit/

Worker information pack https://github.com/D0M3N1C0X/ai-act-hr-readiness-kit/blob/main/docs/worker-information.md

The repository https://github.com/D0M3N1C0X/ai-act-hr-readiness-kit